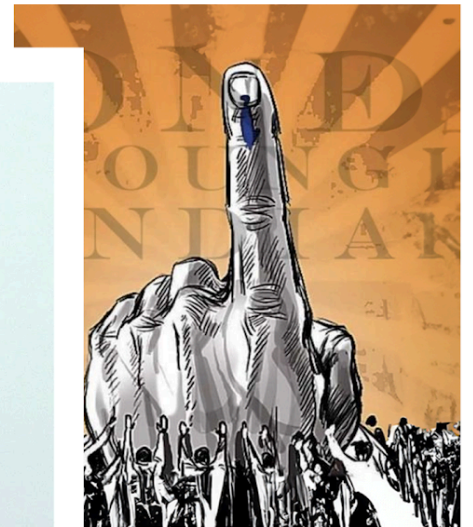
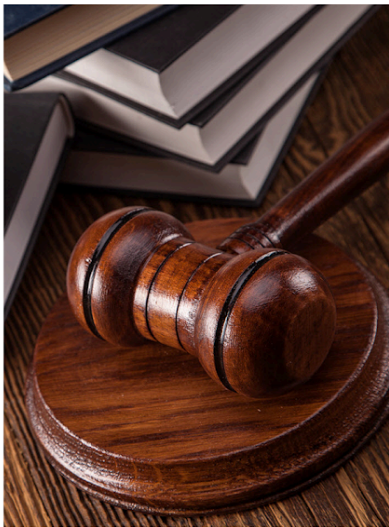


General Knowledge

Indian Polity

STUDY NOTES

Parliament - Rajya Sabha



Parliament - Rajya Sabha



Historical Background Of Rajya Sabha:

The **historical background** of the **Rajya Sabha** (Council of States) traces its roots to the pre-independence period of India.

1. Colonial Era Origins:

- The concept of a bicameral legislature in India was first introduced by the **Government of India Act, of 1919**. This act set up a **Council of States** as the upper house and a **Legislative Assembly** as the lower house.
- The Council of States was the precursor to the Rajya Sabha, and its members were **nominated** or **elected indirectly**.
- The **Montagu-Chelmsford Reforms**, which led to the Government of India Act, of 1919, aimed to give limited self-governance and representation to Indians.

2. Government of India Act, 1935:

- This Act further strengthened the **bicameral structure**, retaining the Council of States at the federal level. However, the scope of legislative powers for Indians was still limited, and the British Government retained significant control.

3. Constituent Assembly:

- After independence in 1947, the **Constituent Assembly of India** took over the task of drafting the new Constitution for independent India.

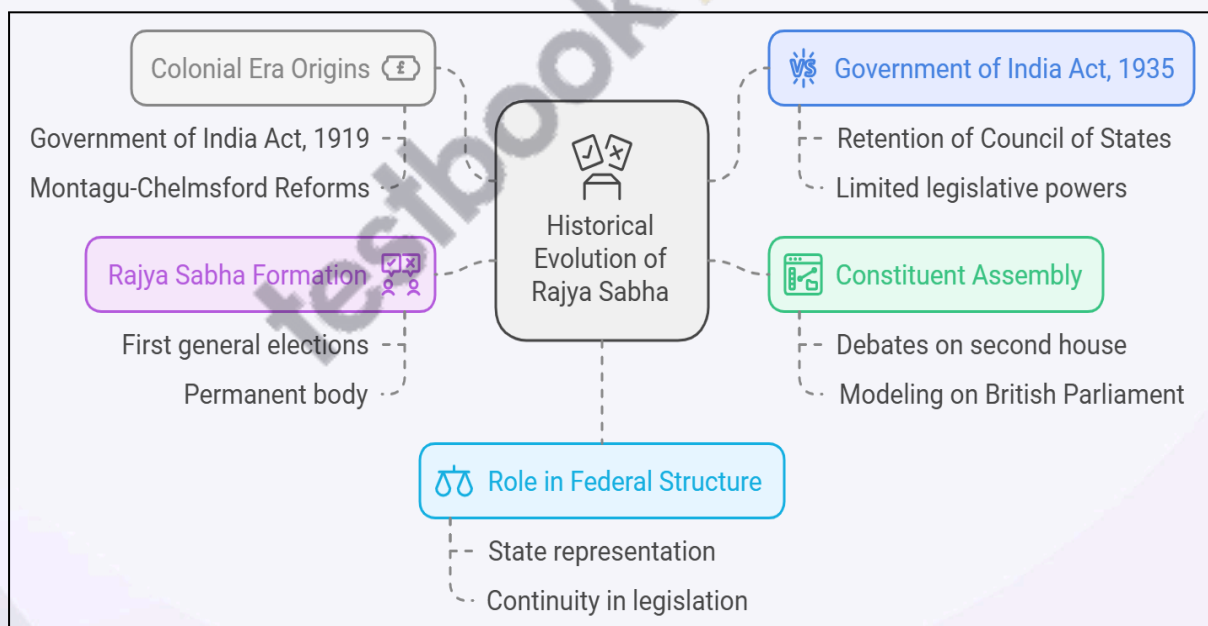
- The makers of the Constitution debated the necessity of a second house in the Parliament. Some felt that it might delay legislative processes, while others argued it would act as a **revising chamber** providing stability.
- After deliberations, the Constituent Assembly decided to establish a bicameral parliament for India, consisting of the Lok Sabha and the Rajya Sabha, modeled on the British Parliament's House of Commons and House of Lords.

4. Rajya Sabha Formation:

- The Rajya Sabha was officially constituted in **1952** after the first general elections under the **Indian Constitution (1950)**.
- It was established to represent the **states and union territories** of India and serve as a **permanent body**, with rotating memberships.

5. Role in the Federal Structure:

- The Rajya Sabha was created to maintain the balance between **federal** and **state interests**. Its composition ensures that the states have a voice in the central legislation.
- The Rajya Sabha, unlike the Lok Sabha, is not subject to dissolution, thus providing **continuity** in the legislative process.



Rajya Sabha Overview:

1. Introduction:

- The **Rajya Sabha** (Council of States) is the **upper house** of the Parliament of India, modeled on the **House of Lords** in the UK. It plays a critical role in the Indian **bicameral legislature**, ensuring representation for the states and union territories.

- It serves as a **permanent body**, providing continuity to the legislative process and acting as a revising chamber for laws passed by the Lok Sabha (lower house).

2. Constitutional Provisions:

- The establishment of a **bicameral Parliament** consisting of the President and two houses—Lok Sabha (House of the People) and Rajya Sabha—is provided under **Article 79** of the Constitution.
- **Article 80** defines the composition of the Rajya Sabha:
 - Members representing states are elected by the **elected members of the State Legislative Assemblies**.
 - Union Territory representatives are chosen similarly.
 - The President of India nominates **12 members** with special knowledge or practical experience in fields such as **literature, science, art, and social service**.

3. Composition:

- The **maximum strength** of the Rajya Sabha is **250 members**.
 - **238 members** represent the states and union territories.
 - **12 members** are nominated by the President of India.
- Currently, the Rajya Sabha has **245 members** (233 elected + 12 nominated).
- The allocation of seats to states is based on their **population**, giving larger states more representation.

4. Election Process:

- Members are **indirectly elected** by **elected members** of the **State Legislative Assemblies** and **Electoral College of Union Territories**.
- The election is held by **proportional representation** using the **single transferable vote** system. This system ensures that seats are allocated to parties according to the proportion of votes received.
- The **President nominates** 12 members to the Rajya Sabha for their expertise, making it a chamber that benefits from individuals with specialized knowledge

5. Tenure:

- Unlike the Lok Sabha, the Rajya Sabha is a **permanent body** and cannot be dissolved.
- Members of the Rajya Sabha have a **term of 6 years**, with **one-third** of its members retiring every two years.

- This system ensures a **continuous flow of experienced legislators** in the upper house, maintaining stability in law-making.

6. Leadership:

- The **Vice President of India** serves as the **ex-officio Chairperson** of the Rajya Sabha, as per **Article 64** of the Constitution. The Chairperson does not have a vote in the Rajya Sabha, except in the case of a tie.
- A **Deputy Chairperson** is elected from among the members of the Rajya Sabha. The Deputy Chairperson presides over the sessions in the absence of the Chairperson.
- The **Leader of the House** in Rajya Sabha is usually a senior minister appointed by the Prime Minister, and the **Leader of the Opposition** represents the largest opposition party.

7. Powers and Functions:

Legislative Powers:

- The Rajya Sabha shares legislative functions with the Lok Sabha. Any **bill**, except a **Money Bill**, can be introduced in the Rajya Sabha.
- It can **approve, amend, or reject** bills passed by the Lok Sabha.

Money Bills:

- Money Bills can only originate in the Lok Sabha. The Rajya Sabha can **suggest amendments** to a Money Bill, but the Lok Sabha is not bound to accept them. The Rajya Sabha must return a Money Bill to the Lok Sabha within **14 days**, failing which it is deemed passed.

Non-Money Bills:

- For bills other than Money Bills, the Rajya Sabha has equal power to approve, reject, or propose amendments.
- If there is a disagreement between the two houses, a **joint sitting** is held to resolve the issue. The **Lok Sabha's strength** generally prevails in a joint sitting.

Amendments to the Constitution:

- Both houses must pass a Constitutional Amendment Bill by a **two-thirds majority** for it to become law.

8. Unique Role:

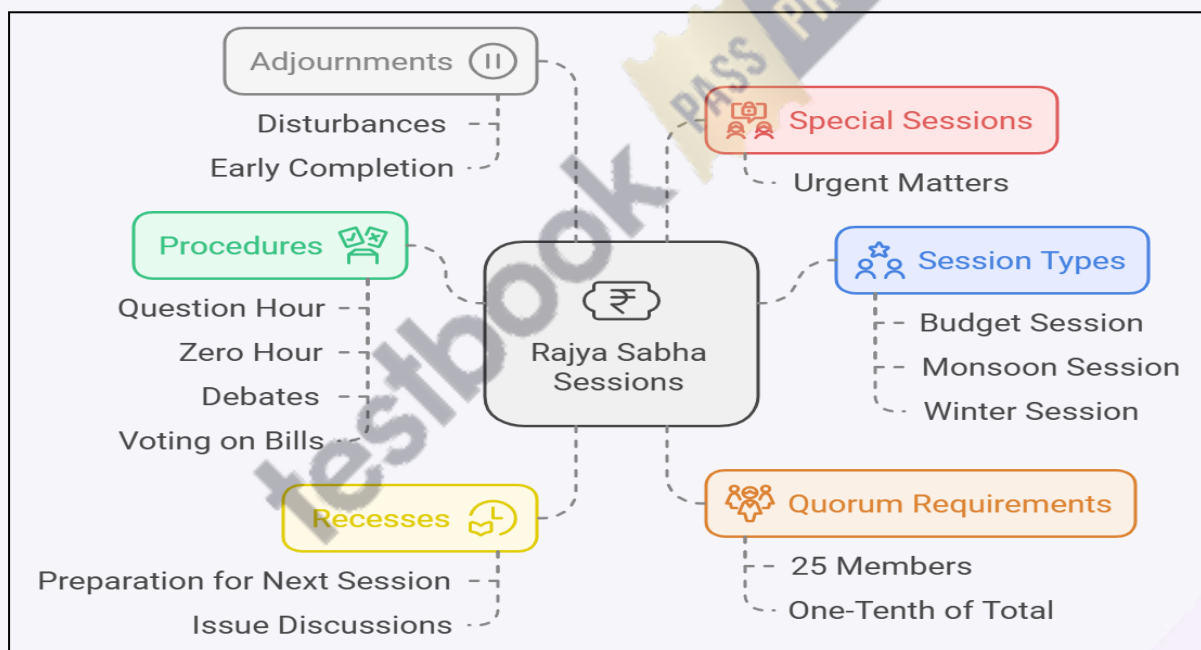
- The Rajya Sabha functions as a **revising chamber**, where legislation passed by the Lok Sabha is reviewed and re-evaluated. This provides an additional layer of scrutiny, preventing hasty legislation.

- It represents the **federal character** of India by giving **equal representation to states**. Each state, regardless of size, sends its representatives to the Rajya Sabha, ensuring their voice in the national legislative process.
- By representing the states, the Rajya Sabha plays a critical role in maintaining the **federal structure** of the Indian government.

9. Special Functions:

- **Article 249:** The Rajya Sabha can pass a resolution (with a **two-thirds majority**) that allows the Parliament to make laws on matters in the **State List** in the national interest.
- It can also initiate proceedings for the **removal of the Vice President** of India.
- The Rajya Sabha plays a role in **approving presidential proclamations** of national emergencies or constitutional crises, such as the **President's Rule** in a state under **Article 356**.

10. Sessions:



Key Constitutional Articles Related to Rajya Sabha:

Article	Title	Description
Article 79	Constitution of Parliament	Establishes a bicameral Parliament in India, consisting of the President, the Rajya Sabha (Council of States), and the Lok Sabha (House of the People).

Article 80	Composition of Rajya Sabha	Specifies the composition: maximum strength of 250 members (238 elected + 12 nominated by the President).
Article 81	Representation of States and Union Territories	Outlines representation in the Rajya Sabha, with members elected by State Legislative Assemblies.
Article 84	Qualifications for Membership	Specifies qualifications for Rajya Sabha members: Indian citizen, at least 30 years old, and other qualifications as prescribed by law.
Article 91	Chairman and Deputy Chairman	Provides for the election of the Deputy Chairman and outlines their duties.
Article 102	Disqualification of Members	Specifies conditions for disqualification of members in both Rajya Sabha and Lok Sabha.
Article 108	Joint Sitting of Parliament	Provides for a joint sitting to resolve deadlocks on bills between the Rajya Sabha and Lok Sabha.
Article 109	Special Procedure for Money Bills	States Money Bills can only be introduced in the Lok Sabha; the Rajya Sabha can only recommend changes.
Article 117	Financial Bills	Financial Bills require Rajya Sabha approval, but it can amend or reject these bills, unlike Money Bills.
Article 249	Power of Rajya Sabha to Legislate on State Matters	Empowers Rajya Sabha to allow Parliament to make laws on State List matters in national interest with a two-thirds majority.
Article 312	Creation of All India Services	Allows Rajya Sabha to initiate the creation of All India Services (e.g., IAS, IPS) with a two-thirds majority.
Article 331	Representation of the	Allows for the nomination of members to the

	Anglo-Indian Community	Lok Sabha by the President, relevant to both houses.
Article 356	President's Rule	Rajya Sabha and Lok Sabha approve the imposition of President's Rule in a state under this article.
Article 67	Removal of Vice President	Specifies that a resolution to remove the Vice President can be initiated in the Rajya Sabha and passed by a majority of all members.

Legislative Procedure

The **legislative procedure** of the **Rajya Sabha** involves several stages through which a bill passes before becoming law.

1. Introduction of Bills:

- **Bills can be introduced** in either house of Parliament, except for **Money Bills** which can only be introduced in the Lok Sabha.
- A bill can be introduced by a **minister** (Government Bill) or by a **private member** (Private Member's Bill).
- The bill goes through three main stages: **First Reading**, **Second Reading**, and **Third Reading**.

2. Transmission to Lok Sabha:

- After the Rajya Sabha passes a bill, it is transmitted to the **Lok Sabha** for consideration.
- If the bill is passed in both houses in identical form, it is sent to the **President** for assent and becomes law.

3. Consideration by the Lok Sabha:

- If the **Lok Sabha** passes the bill without amendments, the bill is sent to the President.
- If the Lok Sabha suggests **amendments**, the bill returns to the Rajya Sabha for further consideration.

4. Resolution of Disagreements (Joint Sitting):

- If there is a **disagreement** between the two houses (e.g., if the Rajya Sabha rejects the bill or suggests amendments not acceptable to the Lok Sabha), the **President** may call a **joint sitting** of both houses to resolve the issue.
- At the **joint sitting**, the bill is passed or rejected based on a **majority vote**.

- Since the Lok Sabha has more members than the Rajya Sabha, the **Lok Sabha's view** generally prevails in a joint sitting.

5. Money Bills:

- Money Bills can only be introduced in the **Lok Sabha**.
- Once the Lok Sabha passes a Money Bill, it is sent to the Rajya Sabha.
- The Rajya Sabha has **limited powers** regarding Money Bills:
 - It cannot reject or amend a Money Bill.
 - It can only make **recommendations** within **14 days**.
 - The Lok Sabha may accept or reject the recommendations of the Rajya Sabha.
 - If the Rajya Sabha does not return the Money Bill within 14 days, it is deemed passed by the Rajya Sabha.

6. Financial Bills:

- **Financial Bills**, other than Money Bills, can be introduced in either house.
- The Rajya Sabha can propose amendments to Financial Bills, but the Lok Sabha has the final say on such amendments.

7. Role of President:

- After the bill is passed by both houses of Parliament, it is sent to the **President of India** for **assent**.
- Once the President gives assent, the bill becomes an **Act of Parliament** and is enforceable by law.

8. Bills in the Rajya Sabha:

- The Rajya Sabha cannot originate **Money Bills**, but it can **originate ordinary bills** or **constitutional amendment bills**.
- If a bill originates in the Rajya Sabha, it follows the same procedure when it is sent to the Lok Sabha for consideration and approval.

9. Special Legislative Powers of Rajya Sabha:

- Under **Article 249**, the Rajya Sabha can pass a resolution (with a two-thirds majority) allowing Parliament to legislate on matters in the **State List** in the national interest.
- Under **Article 312**, the Rajya Sabha can recommend the creation of **All India Services**.